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not much differ from a “mere ‘hunch’”—and so “not create reasonable suspicion.” *Prado Navarette v. California*, 572 U. S. 393, 397 (2014) (quoting *Terry v. Ohio*, 392 U. S. 1, 27 (1968)).

And even when, as under the revocation scheme here, a starting presumption of reasonable suspicion makes sense, the defendant may show that in his case additional information dictates the opposite result. The Court is clear on this point, emphasizing that under the applicable totality-of-the-circumstances test, “the presence of additional facts might dispel reasonable suspicion” even though an officer knows that a car on the road belongs to a person with a revoked license. *Ante*, at 386; see *ante*, at 378 (stating that further information may “negat[e] an inference that the owner is the driver of the vehicle”). Just as the Court once said of a trained drug-detection dog’s “alert,” the license-revocation signal is always subject to a defendant’s challenge, whether through cross-examination of the officer or introduction of his own fact or expert witnesses. *Florida v. Harris*, 568 U. S. 237, 247 (2013).

That challenge may take any number of forms. The Court offers a clear example of observational evidence dispelling reasonable suspicion: if the officer knows the registered owner of a vehicle is an elderly man, but can see the driver is a young woman. See *ante*, at 386. Similarly (if not as cut-and-dry), when the officer learns a car has two or more registered owners, the balance of circumstances may tip away from reasonable suspicion that the one with the revoked license is driving. And so too, the attributes of the car may be relevant. Consider if a car bears the markings of a peer-to-peer carsharing service; or compare the likelihoods that someone other than the registered owner is driving (1) a family minivan and (2) a Ferrari. The officer himself may have a wealth of accumulated information about such matters, and the defendant may probe what that knowledge suggests about the stop at issue.

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Such a challenge may also use statistical evidence, which is almost daily expanding in sophistication and scope. States or municipalities often keep information about “hit rates” in stops like this one—in other words, the frequency with which those stops discover unlicensed drivers behind the wheel. See generally Brief for Andrew Manuel Crespo as *Amicus Curiae* 23–27. Somewhat less direct but also useful are state and local data (collected by governments, insurance companies, and academics alike) about the average number of drivers for each registered automobile and the extent to which unlicensed persons continue to drive. See *id.*, at 13–18. (If, to use an extreme example, every car had 10 associated drivers, and losing a license reduced driving time by 90%, an officer would not have reasonable suspicion for a stop.) Here too, defendants may question testifying officers about such information. Indeed, an officer may have his own hit rate, which if low enough could itself negate reasonable suspicion. See, e.g., *United States v. Cortez-Galaviz*, 495 F. 3d 1203, 1208–1209 (CA10 2007) (Gorsuch, J.) (considering, as part of the reasonable suspicion inquiry, the frequency of an officer’s misses and the accuracy of the database on which he relied).*

In this strange case, contested on a barebones stipulation, the record contains no evidence of these kinds. There is but a single, simple fact: A police officer learned from a state database that a car on the road belonged to a person with a revoked license. Given that revocations in Kansas nearly

*Of course, aggregate statistics of this kind cannot substitute for the individualized suspicion that the Fourth Amendment requires. See, e.g., *Terry v. Ohio*, 392 U. S. 1, 21, n. 18 (1968) (“Th[e] demand for specificity . . . is the central teaching of this Court’s Fourth Amendment jurisprudence”). But in a case like this one, the officer’s suspicion *is* individualized: It arises from the license status of the known owner of a specific car. The only question is whether that suspicion is reasonable—whether, in other words, there is enough to back up the officer’s belief that the owner is driving the vehicle. As to that matter, statistics may be highly relevant, either to support or to cast doubt on the officer’s judgment.

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always stem from serious or repeated driving violations, I agree with the Court about the reasonableness of the officer's inference that the owner, "Glover[,] was driving while his license was revoked." *Ante*, at 386. And because Glover offered no rebuttal, there the matter stands. But that does not mean cases with more complete records will all wind up in the same place. A defendant like Glover may still be able to show that his case is different—that the "presence of additional facts" and circumstances "dispel[s] reasonable suspicion." *Ibid.* Which is to say that in more fully litigated cases, the license-revocation alert does not (as it did here) end the inquiry. It is but the first, though no doubt an important, step in assessing the reasonableness of the officer's suspicion.

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In upholding routine stops of vehicles whose owners have revoked licenses, the Court ignores key foundations of our reasonable-suspicion jurisprudence and impermissibly and unnecessarily reduces the State's burden of proof. I therefore dissent.

I

I begin with common ground. The Fourth Amendment permits "brief investigatory" vehicle stops, *United States v. Cortez*, 449 U. S. 411, 417 (1981), on "facts that do not constitute probable cause," *United States v. Brignoni-Ponce*, 422 U. S. 873, 881 (1975). To assess whether an officer had the requisite suspicion to seize a driver, past cases have considered the "totality of the circumstances—the whole picture," *Cortez*, 449 U. S., at 417, and analyzed whether the officer assembled "fact on fact and clue on clue," *id.*, at 419.

The stop at issue here, however, rests on just one key fact: that the vehicle was owned by someone with a revoked license. The majority concludes—erroneously, in my view—that seizing this vehicle was constitutional on the record below because drivers with revoked licenses (as opposed to

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suspended licenses) in Kansas “have already demonstrated a disregard for the law or are categorically unfit to drive.” *Ante*, at 382. This analysis breaks from settled doctrine and dramatically alters both the quantum and nature of evidence a State may rely on to prove suspicion.

A

The State bears the burden of justifying a seizure. *Florida v. Royer*, 460 U.S. 491, 500 (1983) (plurality opinion); *Brown v. Texas*, 443 U.S. 47, 51–52 (1979). This requires the government to articulate factors supporting its reasonable suspicion, usually through a trained agent. See *Ornelas v. United States*, 517 U.S. 690, 696 (1996); see also *United States v. Sokolow*, 490 U.S. 1, 10 (1989). While the Court has not dictated precisely what evidence a government must produce, it has stressed that an officer must at least “articulate more than an ‘inchoate and unparticularized suspicion or ‘hunch’” of criminal activity.” *Illinois v. Wardlow*, 528 U.S. 119, 123–124 (2000) (quoting *Terry v. Ohio*, 392 U.S. 1, 27 (1968)). That articulation must include both facts and an officer’s “rational inferences from those facts.” *Brignoni-Ponce*, 422 U.S., at 880, 884. A logical “gap as to any one matter” in this analysis may be overcome by “‘a strong showing’” regarding “‘other indicia of reliability.’” *Florida v. Harris*, 568 U.S. 237, 245 (2013). But gaps may not go unfilled.

Additionally, reasonable suspicion eschews judicial common sense, *ante*, at 382, in favor of the perspectives and inferences of a reasonable officer viewing “the facts through the lens of his police experience and expertise.” *Ornelas*, 517 U.S., at 699; *Cortez*, 449 U.S., at 416–418 (explaining that the facts and inferences giving rise to a stop “must be seen and weighed . . . as understood by those versed in the field of law enforcement”); *Heien v. North Carolina*, 574 U.S. 54, 73 (2014) (SOTOMAYOR, J., dissenting) (“[O]ur enunciation of the reasonableness inquiry and our justification for it . . .

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have always turned on an officer's factual conclusions and an officer's expertise with respect to those factual conclusions"). It is the reasonable officer's assessment, not the ordinary person's—or judge's—judgment, that matters.¹

Finally, a stop must be individualized—that is, based on “a suspicion that the particular [subject] being stopped is engaged in wrongdoing.” *Cortez*, 449 U. S., at 418; *Prado Navarette v. California*, 572 U. S. 393, 396–397 (2014). This does not mean that the officer must know the driver's identity. But a seizure must rest on more than the “likelihood that [a] given person” or particular vehicle is engaged in wrongdoing. *Brignoni-Ponce*, 422 U. S., at 886–887. The inquiry ordinarily involves some observation or report about the target's behavior—not merely the class to which he belongs. See, e. g., *Navarette*, 572 U. S., at 398, 402 (upholding vehicle stop based on an anonymous tip about driver conduct, interpreted in light of the “accumulated experience of thousands of officers”); *Sokolow*, 490 U. S., at 10 (evaluating the collective facts giving rise to suspicion that an individual was transporting narcotics instead of relying on law enforcement's simplified drug courier “‘profile’”).

B

Faithful adherence to these precepts would yield a significantly different analysis and outcome than that offered by the majority.

For starters, the majority flips the burden of proof. It permits Kansas police officers to effectuate roadside stops

¹ *Cortez* explained why this is so. Law enforcement officers, behaving akin to “jurors as factfinders,” have “formulated certain commonsense conclusions about human behavior” as it relates to “the field of law enforcement.” 449 U. S., at 418. A trained officer thus “draws inferences and makes deductions—inferences and deductions that might well elude an untrained person.” *Ibid.*; see also *United States v. Arvizu*, 534 U. S. 266, 276 (2002) (crediting officer assessment of driver behavior that was based on “his specialized training and familiarity with the customs of the area's inhabitants”).

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whenever they lack “information negating an inference” that a vehicle’s unlicensed owner is its driver. *Ante*, at 378. This has it backwards: The State shoulders the burden to supply the key inference that tethers observation to suspicion. The majority repeatedly attributes such an inference to Deputy Mehrer. *Ante*, at 381, 383, 386. But that is an after-the-fact gloss on a seven-paragraph stipulation. Nowhere in his terse submission did Deputy Mehrer indicate that he had any informed belief about the propensity of unlicensed drivers to operate motor vehicles in the area—let alone that he relied on such a belief in seizing Glover. *Ante*, at 378–379.

The consequence of the majority’s approach is to absolve officers from any responsibility to investigate the identity of a driver where feasible. But that is precisely what officers ought to do—and are more than capable of doing. Of course, some circumstances may not warrant an officer approaching a car to take a closer look at its occupants. But there are countless other instances where officers have been able to ascertain the identity of a driver from a distance and make out their approximate age and gender. Indeed, our cases are rife with examples of officers who have perceived more than just basic driver demographics. See, e. g., *Heien*, 574 U. S., at 57 (officer thought that motorist was “‘very stiff and nervous’”); *United States v. Arvizu*, 534 U. S. 266, 270 (2002) (officer observed an “adult man” driving who “appeared stiff”); *United States v. Ross*, 456 U. S. 798, 801 (1982) (officer pulled alongside car and noticed that the driver matched a description from an informant); *Brignoni-Ponce*, 422 U. S., at 875 (officers stopped a vehicle whose occupants “appeared to be of Mexican descent”). The majority underestimates officers’ capabilities and instead gives them free rein to stop a vehicle involved in no suspicious activity simply because it is registered to an unlicensed person. That stop is based merely on a guess or a “hunch” about the driver’s identity. *Wardlow*, 528 U. S., at 124 (internal quotation marks omitted).

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With no basis in the record to presume that unlicensed drivers routinely continue driving, the majority endeavors to fill the gap with its own “common sense.” *Ante*, at 382. But simply labeling an inference “common sense” does not make it so, no matter how many times the majority repeats it. Cf. *ante*, at 382, 383, 384, 385. Whether the driver of a vehicle is likely to be its unlicensed owner is “by no means obvious.” *Ante*, at 387 (KAGAN, J., concurring). And like the concurrence, I “doubt” that our collective judicial common sense could answer that question, even if our Fourth Amendment jurisprudence allowed us to do so. *Ante*, at 388.

Contrary to the majority’s claims, *ante*, at 380–382, 384, the reasonable-suspicion inquiry does not accommodate the average person’s intuition. Rather, it permits reliance on a particular type of common sense—that of the reasonable officer, developed through her experiences in law enforcement. *Cortez*, 449 U. S., at 418. This approach acknowledges that what may be “common sense” to a layperson may not be relevant (or correct) in a law enforcement context. Indeed, this case presents the type of geographically localized inquiry where an officer’s “inferences and deductions that might well elude an untrained person” would come in handy. *Ibid.*; see also *Arvizu*, 534 U. S., at 276 (prizing an officer’s “specialized training and familiarity with the customs of the area’s inhabitants”). By relying on judicial inferences instead, the majority promotes broad, inflexible rules that overlook regional differences.

Allowing judges to offer their own brand of common sense where the State’s proffered justifications for a search come up short also shifts police work to the judiciary. Our cases—including those the majority cites—have looked to officer sensibility to establish inferences about human behavior, even though they just as easily could have relied on the inferences “made by ordinary people on a daily basis.” *Ante*, at 383. See, e. g., *Navarette*, 572 U. S., at 402 (pointing to “the accumulated experience of thousands of officers” to

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identify certain “erratic” behaviors “as sound indicia of drunk driving”); *Wardlow*, 528 U. S., at 124 (permitting officers to account for the relevant characteristics of a location when interpreting whether flight from police is “evasive”); *Sokolow*, 490 U. S., at 9–10 (crediting the evidentiary significance of facts “as seen by a trained agent” to identify a suspicious traveler). There is no reason to depart from that practice here.

Finally, to bolster its conclusion as grounded in “common experience,” the majority cites “[e]mpirical studies.” *Ante*, at 381. But its use of statistics illustrates the danger of relying on large-scale data to carry out what is supposed to be a particularized exercise. Neither of the referenced reports tells us the percentage of vehicle owners with revoked licenses in Kansas who continue to drive their cars. Neither report even offers a useful denominator: One lumps drivers with suspended and revoked licenses together, while the other examines the license status of only motorists involved in fatal collisions. The figures say nothing about how the behavior of revoked drivers measures up relative to their licensed counterparts—whether one group is more likely to be involved in accidents, or whether the incidences are comparable—which would inform a trooper’s inferences about driver identity.

As the concurrence recognizes, while statistics may help a defendant challenge the reasonableness of an officer’s actions, they “cannot substitute for the individualized suspicion that the Fourth Amendment requires.” *Ante*, at 390, n. If courts do not scrutinize officer observation or expertise in the reasonable-suspicion analysis, then seizures may be made on large-scale data alone—data that say nothing about the individual save for the class to which he belongs. That analytical approach strays far from “acting upon observed violations” of law—which this Court has said is the “foremost method of enforcing traffic and vehicle safety regulations.” *Delaware v. Prouse*, 440 U. S. 648, 659 (1979).

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The majority today has paved the road to finding reasonable suspicion based on nothing more than a demographic profile. Its logic has thus made the State's task all but automatic. That has never been the law, and it never should be.

II

The majority's justifications for this new approach have no foundation in fact or logic. It supposes that requiring officers to point to "training materials or field experiences" would demand "'scientific certainty.'" *Ante*, at 380–381. But that is no truer in this case than in other circumstances where the reasonable-suspicion inquiry applies. Indeed, the State here was invited to stipulate to the evidence it relied on to make the stop. It could have easily described the individual or "accumulated experience" of officers in the jurisdiction. Cf. *Navarette*, 572 U. S., at 402. The State chose not to present such evidence and has not shown that it could not have done so. Accordingly, it has proved no harm to itself.²

In fact, it is the majority's approach that makes scant policy sense. If the State need not set forth all the information its officers considered before forming suspicion, what conceivable evidence could be used to mount an effective challenge to a vehicle stop, as the concurrence imagines? *Ante*, at 381. Who could meaningfully interrogate an officer's action when all the officer has to say is that the vehicle was registered to an unlicensed driver? How would a driver counter that evidence—by stating that they were of a different age or gender than the owner and insisting that the officer could

²The majority suggests that requiring the State to supply the missing link between fact and suspicion would "considerably narrow the daylight" between the reasonable-suspicion showing and that required to establish probable cause. *Ante*, at 384. But that may simply be a feature of this unique context, where the difference between a permissible and impermissible stop turns on a single fact. Given that reasonable suspicion and probable cause are not "reducible to 'precise definition or quantification,'" *Florida v. Harris*, 568 U. S. 237, 243 (2013), the gradation between the two is bound to vary from case to case.

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have easily discerned that? And where would a defendant bring his arguments if the trial judge makes the key inference, or by the same token, fails to make an inference that “might well elude” the untrained? *Cortez*, 449 U. S., at 418.

Moreover, the majority’s distinction between revocation and suspension may not hold up in other jurisdictions. For one, whether drivers with suspended licenses have “demonstrated a disregard for the law or are categorically unfit to drive” is completely unknown. And in several States, the grounds for revocation include offenses unrelated to driving fitness, such as using a license to unlawfully buy alcohol. See, *e. g.*, Ky. Rev. Stat. Ann. § 186.560 (West Cum. Supp. 2019); Mont. Code Ann. § 61–5–206 (2019); R. I. Gen. Laws § 31–11–6 (2010). In yet other jurisdictions, “revocation” is the label assigned to a temporary sanction, which may be imposed for such infractions as the failure to comply with child support payments. Okla. Stat., Tit. 47, § 6–201.1 (2011). Whether the majority’s “common sense” assumptions apply outside of Kansas is thus open to challenge.

* * *

Vehicle stops “interfere with freedom of movement, are inconvenient, and consume time.” *Prouse*, 440 U. S., at 657. Worse still, they “may create substantial anxiety” through an “unsettling show of authority.” *Ibid.* Before subjecting motorists to this type of investigation, the State must possess articulable facts and officer inferences to form suspicion. The State below left unexplained key components of the reasonable-suspicion inquiry. In an effort to uphold the conviction, the Court destroys Fourth Amendment jurisprudence that requires individualized suspicion. I respectfully dissent.

Syllabus

BABB *v.* WILKIE, SECRETARY OF VETERANS
AFFAIRSCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 18–882. Argued January 15, 2020—Decided April 6, 2020

Petitioner Noris Babb, a clinical pharmacist at a U. S. Department of Veterans Affairs Medical Center, sued the Secretary of Veterans Affairs (hereinafter VA) for, *inter alia*, age discrimination in various adverse personnel actions. The VA moved for summary judgment, offering nondiscriminatory reasons for the challenged actions. The District Court granted the VA’s motion after finding that Babb had established a *prima facie* case, that the VA had proffered legitimate reasons for the challenged actions, and that no jury could reasonably conclude that those reasons were pretextual. On appeal, Babb contended the District Court’s requirement that age be a but-for cause of a personnel action *was* inappropriate under the federal-sector provision of the Age Discrimination in Employment Act of 1967 (ADEA). Because most federal-sector “personnel actions” affecting individuals aged 40 and older must be made “free from any discrimination based on age,” 29 U. S. C. § 633a(a), Babb argued, such a personnel action is unlawful if age is a factor in the challenged decision. Thus, even if the VA’s proffered reasons in her case were not pretextual, it would not necessarily follow that age discrimination played no part. The Eleventh Circuit found Babb’s argument foreclosed by Circuit precedent.

Held: The plain meaning of § 633a(a) demands that personnel actions be untainted by any consideration of age. To obtain reinstatement, damages, or other relief related to the end result of an employment decision, a showing that a personnel action would have been different if age had not been taken into account is necessary, but if age discrimination played a lesser part in the decision, other remedies may be appropriate. Pp. 404–414.

(a) The Government argues that the ADEA’s federal-sector provision imposes liability only when age is a but-for cause of an employment decision, while Babb maintains that it prohibits any adverse consideration of age in the decision-making *process*. The plain meaning of the statutory text shows that age need not be a but-for cause of an employment decision in order for there to be a violation. Pp. 404–408.

(1) The ADEA does not define the term “personnel action,” but a statutory provision governing federal employment, 5 U. S. C. § 2302(a)(2)(A), defines it to include most employment-related

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decisions—an interpretation consistent with the term’s general usage. The phrase “free from” means “untainted,” and “any” underscores that phrase’s scope. As for “discrimination,” its “normal definition” is “differential treatment.” *Jackson v. Birmingham Bd. of Ed.*, 544 U. S. 167, 174. And “[i]n common talk, the phrase ‘based on’ indicates a but-for causal relationship,” *Safeco Ins. Co. of America v. Burr*, 551 U. S. 47, 63, thus indicating that age must be a but-for cause of the discrimination alleged. The remaining phrase—“shall be made”—denotes a duty, emphasizing the importance of avoiding the taint. Pp. 405–406.

(2) Two matters of syntax are critical here. First, “based on age” is an adjectival phrase modifying the noun “discrimination,” not the phrase “personnel actions.” Thus, age must be a but-for cause of discrimination but not the personnel action itself. Second, “free from any discrimination” is an adverbial phrase that modifies the verb “made” and describes how a personnel action must be “made,” namely, in a way that is not tainted by differential treatment based on age. Thus, the straightforward meaning of §633a(a)’s terms is that the statute does not require proof that an employment decision would have turned out differently if age had not been taken into account. Instead, if age is a factor in an employment decision, the statute has been violated.

The Government has no answer to this parsing of the statutory text. It makes correct points about the meaning of particular words, but draws the unwarranted conclusion that the statutory text requires something more than a federal employer’s mere consideration of age in personnel decisions. The Government’s only other textual argument is that the term “made” refers to a particular moment in time, *i. e.*, the moment when the final employment decision is made. That interpretation, however, does not mean that age must be a but-for cause of the ultimate outcome. Pp. 406–408.

(b) Contrary to the Government’s primary argument, this interpretation is not undermined by prior cases interpreting the Fair Credit Reporting Act, 15 U. S. C. § 1681m(a), see *Safeco Ins. Co. of America*, 551 U. S. 47; the ADEA’s private-sector provision, 29 U. S. C. § 623(a)(1), see *Gross v. FBL Financial Services, Inc.*, 557 U. S. 167; and Title VII’s anti-retaliation provision, 42 U. S. C. § 2000e–3(a), see *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338. The language of § 633a(a) is markedly different from the language of those statutes; thus the holdings in those cases are entirely consistent with the holding here. And the traditional rule favoring but-for causation does not change the result: § 633a(a) requires proof of but-for causation, but the object of that causation is “discrimination,” not the personnel action. Pp. 408–411.

(c) It is not anomalous to hold the Federal Government to a stricter standard than private employers or state and local governments. See

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§ 623(a). When Congress expanded the ADEA's scope beyond private employers, it added state and local governments to the definition of employers in the private-sector provision. But it “deliberately prescribed a distinct statutory scheme applicable only to the federal sector,” *Lehman v. Nakshian*, 453 U. S. 156, 166, eschewing the private-sector provision language. That Congress would want to hold the Federal Government to a higher standard is not unusual. See, e. g., 5 U. S. C. § 2301(b)(2). Regardless, where the statute's words are unambiguous, the judicial inquiry is complete. Pp. 411–413.

(d) But-for causation is nevertheless important in determining the appropriate remedy. Plaintiffs cannot obtain compensatory damages or other forms of relief related to the end result of an employment decision without showing that age discrimination was a but-for cause of the employment outcome. This conclusion is supported by basic principles long employed by this Court, see, e. g., *Steel Co. v. Citizens for Better Environment*, 523 U. S. 83, 103, and traditional principles of tort and remedies law. Remedies must be tailored to the injury. Plaintiffs who show that age was a but-for cause of differential treatment in an employment decision, but not a but-for cause of the decision itself, can still seek injunctive or other forward-looking relief. Pp. 413–414.

743 Fed. Appx. 280, reversed and remanded.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and BREYER, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined, and in which GINSBURG, J., joined as to all but footnote 3. SOTOMAYOR, J., filed a concurring opinion, in which GINSBURG, J., joined, *post*, p. 414. THOMAS, J., filed a dissenting opinion, *post*, p. 415.

Roman Martinez argued the cause for petitioner. With him on the briefs were *Margaret A. Upshaw* and *Joseph D. Magri*.

Solicitor General Francisco argued the cause for respondent. With him on the brief were *Assistant Attorneys General Hunt* and *Dreiband*, *Deputy Solicitor General Wall*, *Acting Principal Deputy Assistant Attorney General Davis*, *Erica L. Ross*, *Marleigh D. Dover*, *Stephanie R. Marcus*, and *Thomas E. Chandler*.*

*Briefs of *amici curiae* urging reversal were filed for AARP et al. by *Daniel B. Kohrman*, *Laurie A. McCann*, and *William Alvarado Rivera*; and for the National Treasury Employees Union by *Gregory O'Duden*, *Julie M. Wilson*, and *Paras N. Shah*.

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JUSTICE ALITO delivered the opinion of the Court.*

The federal-sector provision of the Age Discrimination in Employment Act of 1967 (ADEA), 88 Stat. 74, 29 U. S. C. § 633a(a), provides (with just a few exceptions) that “personnel actions” affecting individuals aged 40 and older “shall be made free from any discrimination based on age.” We are asked to decide whether this provision imposes liability only when age is a “but-for cause” of the personnel action in question.

We hold that § 633a(a) goes further than that. The plain meaning of the critical statutory language (“made free from any discrimination based on age”) demands that personnel actions be untainted by any consideration of age. This does not mean that a plaintiff may obtain all forms of relief that are generally available for a violation of § 633a(a), including hiring, reinstatement, backpay, and compensatory damages, without showing that a personnel action would have been different if age had not been taken into account. To obtain such relief, a plaintiff must show that age was a but-for cause of the challenged employment decision. But if age discrimination played a lesser part in the decision, other remedies may be appropriate.

I

Noris Babb, who was born in 1960, is a clinical pharmacist at the U. S. Department of Veterans Affairs Medical Center in Bay Pines, Florida. Babb brought suit in 2014 against the Secretary of Veterans Affairs (hereinafter VA), claiming that she had been subjected to age and sex discrimination, as well as retaliation for engaging in activities protected by federal anti-discrimination law. Only her age-discrimination claims are now before us.

Those claims center on the following personnel actions. First, in 2013, the VA took away Babb’s “advanced scope” designation, which had made her eligible for promotion on the Federal Government’s General Scale from a GS–12 to a

*JUSTICE GINSBURG joins all but footnote 3 of this opinion.

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GS–13.¹ Second, during this same time period, she was denied training opportunities and was passed over for positions in the hospital’s anticoagulation clinic. Third, in 2014, she was placed in a new position, and while her grade was raised to GS–13, her holiday pay was reduced. All these actions, she maintains, involved age discrimination, and in support of her claims, she alleges, among other things, that supervisors made a variety of age-related comments.

The VA moved for summary judgment and offered non-discriminatory reasons for the challenged actions, and the District Court granted that motion. Evaluating each of Babb’s claims under the burden-shifting framework outlined in *McDonnell Douglas Corp. v. Green*, 411 U. S. 792 (1973), the court found that Babb had established a prima facie case, that the Secretary had proffered legitimate reasons for the challenged actions, and that no jury could reasonably conclude that those reasons were pretextual.

Babb appealed, contending that the District Court should not have used the *McDonnell Douglas* framework because it is not suited for “mixed motives” claims. She argued that under the terms of the ADEA’s federal-sector provision, a personnel action is unlawful if age is a factor in the challenged decision. As a result, she explained that even if the VA’s proffered reasons were not pretextual, it would not necessarily follow that age discrimination played no part.

The Eleventh Circuit panel that heard Babb’s appeal found that her argument was “foreclosed” by Circuit precedent but added that it might have agreed with her if it were “writing on a clean slate.” *Babb v. Secretary, Dept. of Veterans Affairs*, 743 Fed. Appx. 280, 287–288 (2018) (*per curiam*) (citing *Trask v. Secretary, Dept. of Veterans Affairs*, 822 F. 3d 1179 (CA11 2016)).

¹ The General Schedule (GS) is a federal pay scale that is divided into 15 numbered grades. See 5 U. S. C. § 5104. “[A]s the number of the grade increases, so do pay and responsibilities.” *United States v. Clark*, 454 U. S. 555, 557 (1982).

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We granted certiorari, 588 U. S. 920 (2019), to resolve a Circuit split over the interpretation of § 633a(a).

II

That provision of the ADEA states in relevant part: “All personnel actions affecting employees or applicants for employment who are at least 40 years of age . . . shall be made free from any discrimination based on age.” 29 U. S. C. § 633a(a).

The Government interprets this provision to impose liability only when age is a but-for cause of an employment decision. According to the Government, even if age played a part in such a decision, an employee or applicant for employment cannot obtain any relief unless it is shown that the decision would have been favorable if age had not been taken into account. This interpretation, the Government contends, follows both from the meaning of the statutory text and from the “default rule” that we have recognized in other employment discrimination cases, namely, that recovery for wrongful conduct is generally permitted only if the injury would not have occurred but for that conduct. See, *e. g.*, *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338, 346–347 (2013).

Babb interprets the provision differently. She maintains that its language prohibits any adverse consideration of age in the decision-making *process*. Accordingly, she argues proof that age was a but-for cause of a challenged employment decision is not needed.

A

Which interpretation is correct? To decide, we start with the text of the statute, see *Gross v. FBL Financial Services, Inc.*, 557 U. S. 167, 175 (2009), and as it turns out, it is not necessary to go any further. The plain meaning of the statutory text shows that age need not be a but-for cause of an employment decision in order for there to be a violation of § 633a(a). To explain the basis for our interpretation, we will first define the important terms in the statute and then consider how they relate to each other.

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1

Section 633a(a) concerns “personnel actions,” and while the ADEA does not define this term, its meaning is easy to understand. The Civil Service Reform Act of 1978, which governs federal employment, broadly defines a “personnel action” to include most employment-related decisions, such as appointment, promotion, work assignment, compensation, and performance reviews. See 5 U. S. C. §2302(a)(2)(A). That interpretation is consistent with the term’s meaning in general usage, and we assume that it has the same meaning under the ADEA.

Under §633a(a), personnel actions must be made “free from” discrimination. The phrase “free from” means “untainted” or “[c]lear of (something which is regarded as objectionable).” Webster’s Third New International Dictionary 905 (def. 4(a)(2)) (1976); 4 Oxford English Dictionary 521 (def. 12) (1933); see also American Heritage Dictionary 524 (def. 5(a)) (1969) (defining “free” “[u]sed with *from*” as “[n]ot affected or restricted by a given condition or circumstance”); Random House Dictionary of the English Language 565 (def. 12) (1966) (defining “free” as “exempt or released from something specified that controls, restrains, burdens, etc.”). Thus, under §633a(a), a personnel action must be made “untainted” by discrimination based on age, and the addition of the term “any” (“free from *any* discrimination based on age”) drives the point home.² And as for “discrimination,” we assume that it carries its “‘normal definition,’” which is “‘differential treatment.’” *Jackson v. Birmingham Bd. of Ed.*, 544 U. S. 167, 174 (2005).

Under §633a(a), the type of discrimination forbidden is “discrimination based on age,” and “[i]n common talk, the phrase ‘based on’ indicates a but-for causal relationship.”

² We have repeatedly explained that “‘the word “any” has an expansive meaning.’” *Ali v. Federal Bureau of Prisons*, 552 U. S. 214, 219 (2008) (quoting *United States v. Gonzales*, 520 U. S. 1, 5 (1997)). The standard dictionary definition of “any” is “[s]ome, regardless of quantity or number.” American Heritage Dictionary 59 (def. 2) (1969).

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Safeco Ins. Co. of America v. Burr, 551 U.S. 47, 63 (2007); cf. *Comcast Corp. v. National Assn. of African American-Owned Media*, 589 U.S. 327, 334–335 (2020). Therefore, § 633a(a) requires that age be a but-for cause of the discrimination alleged.

What remains is the phrase “shall be made.” “[S]hall be made” is a form of the verb “to make,” which means “to bring into existence,” “to produce,” to “render,” and “to cause to be or become.” Random House Dictionary of the English Language, at 866. Thus, “shall be made” means “shall be produced,” etc. And the imperative mood, denoting a duty, see Black’s Law Dictionary 1233 (5th ed. 1979), emphasizes the importance of avoiding the taint.

2

So much for the individual terms used in § 633a(a). What really matters for present purposes is the way these terms relate to each other. Two matters of syntax are critical. First, “based on age” is an adjectival phrase that modifies the noun “discrimination.” It does not modify “personnel actions.” The statute does not say that “it is unlawful to take personnel actions that are based on age”; it says that “personnel actions . . . shall be made free from any discrimination based on age.” § 633a(a). As a result, age must be a but-for cause of discrimination—that is, of differential treatment—but not necessarily a but-for cause of a personnel action itself.

Second, “free from any discrimination” is an adverbial phrase that modifies the verb “made.” *Ibid.* Thus, “free from any discrimination” describes how a personnel action must be “made,” namely, in a way that is not tainted by differential treatment based on age. If age discrimination plays any part in the way a decision is made, then the decision is not made in a way that is untainted by such discrimination.

This is the straightforward meaning of the terms of § 633a(a), and it indicates that the statute does not require

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proof that an employment decision would have turned out differently if age had not been taken into account.

To see what this entails in practice, consider a simple example. Suppose that a decision-maker is trying to decide whether to promote employee A, who is 35 years old, or employee B, who is 55. Under the employer's policy, candidates for promotion are first given numerical scores based on non-discriminatory factors. Candidates over the age of 40 are then docked five points, and the employee with the highest score is promoted. Based on the non-discriminatory factors, employee A (the 35-year-old) is given a score of 90, and employee B (the 55-year-old) gets a score of 85. But employee B is then docked 5 points because of age and thus ends up with a final score of 80. The decision-maker looks at the candidates' final scores and, seeing that employee A has the higher score, promotes employee A.

This decision is not "made" "free from any discrimination" because employee B was treated differently (and less favorably) than employee A (because she was docked five points and A was not). And this discrimination was "based on age" because the five points would not have been taken away were it not for employee B's age.

It is true that this difference in treatment did not affect the outcome, and therefore age was not a but-for cause of the decision to promote employee A. Employee A would have won out even if age had not been considered and employee B had not lost five points, since A's score of 90 was higher than B's initial, legitimate score of 85. But under the language of § 633a(a), this does not preclude liability.

The Government has no answer to this parsing of the statutory text. It makes two correct points: first, that "'discrimination based on age'" "requires but-for causation," and, second, that "'discrimination'" means "'differential treatment.'" Brief for Respondent 16–17. But based on these two points, the Government draws the unwarranted conclusion that "[i]t is thus not enough for a federal employer merely to *consider* age . . . if that consideration does not

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actually cause the employer to make a less favorable personnel action than it would have made for a similarly situated person who is younger.” *Id.*, at 17. That conclusion does not follow from the two correct points on which it claims to be based. What follows instead is that, under § 633a(a), age must be the but-for cause of *differential treatment*, not that age must be a but-for cause of *the ultimate decision*.³

B

The Government’s primary argument rests not on the text of § 633a(a) but on prior cases interpreting different statutes.

³ Beyond this, the Government’s only other textual argument is that the term “made” refers to a particular moment in time, *i. e.*, the moment when the final employment decision is made. We agree, but this does not mean that age must be a but-for cause of the ultimate outcome. If, at the time when the decision is actually made, age plays a part, then the decision is not made “free from” age discrimination.

It is not clear that Babb actually disagrees with the Government on this point, although the many references in her brief to the decision-making process could be read to mean that § 633a(a) can be violated even if age played no part whatsoever when the actual decision was made. If that is what Babb wants to suggest, however, we must disagree. It is entirely natural to regard an employment decision as being “made” at the time when the outcome is actually determined and not during events leading up to that decision. See American Heritage Dictionary, at 788 (def. 10) (defining “make” as “[t]o arrive at” a particular conclusion, *i. e.*, to “*make a decision*”). And holding that § 633a(a) is violated when the consideration of age plays no role in the final decision would have startling implications.

Consider this example: A decision-maker must decide whether to promote employee A, who is under 40, or employee B, who is over 40. A subordinate recommends employee A and says that the recommendation is based in part on employee B’s age. The decision-maker rebukes this subordinate for taking age into account, disregards the recommendation, and makes the decision independently. Under an interpretation that read “made” expansively to encompass a broader personnel process, § 633a(a) would be violated even though age played no role whatsoever in the ultimate decision. Indeed, there might be a violation even if the decision-maker decided to promote employee B. We are aware of no other anti-discrimination statute that imposes liability under such circumstances, and we do not think that § 633a(a) should be understood as the first.